Mr Dubois

DAILY REPORT #3 - 21 April 1947

FLICK CASE - TRIBUNAL IV

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(1)

1. Evidence

Thirty-eight documents were introduced completing Document Book I, dealing with biographical material of defendants, and a portion of Document Book II, dealing with material descriptive of the Flick Concern and its component enterprises.

2. Law and Procedure

The Tribunal announced that the Uniform Rules of Procedure would be followed in Case #5. The Tribunal also adopted the practice that documents need not be read when introduced into evidence.

Dr. Nath, attorney for defendant Kaletsch, asked the Court's permission to question documents after they had been introduced in the event the defendants themselves recalled anything of importance after studying the documents. This was necessary because the defendants had not had an opportunity to see the Document Books or the photostatic copies prior to the opening of the session. Prosecution consented to this procedure. Additional Document Books will be furnished the Defense Information Center in order that the defendants may have copies for their own study.

3. Miscellaneous

The defendant Steinbrinck was not present at the afternoon session because of illness. A certificate of the prison physician was submitted to the Tribunal. By agreement between prosecution and counsel for the defendant, trial continued in his absence.